

HOUSE No. 1725

The Commonwealth of Massachusetts

PRESENTED BY:

Homar Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ban the release of balloons.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>1/14/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/31/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>5/20/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>5/1/2025</i>

HOUSE No. 1725

By Representative Gómez of Easthampton, a petition (accompanied by bill, House, No. 1725) of Homar Gómez and Joanne M. Comerford for legislation to ban the intentional release of balloons. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ban the release of balloons.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1: Title This Act shall be known as the Balloon Release Prohibition Act

2 Section 2: Purpose The purpose of this Act is to ban the intentional release of balloons,
3 which pose a severe threat to wildlife and the environment. Balloons released into the
4 atmosphere often end up in waterways and natural areas, where they cause infinite harm to
5 wildlife through ingestion, entanglement, and habitat pollution.

6 Section 3: Definitions

7 1. Balloon: Any inflatable object made of latex, mylar, or other materials designed
8 to be filled with gas and released into the atmosphere.

9 2. Wildlife: All animals, including but not limited to birds, mammals, reptiles,
10 amphibians, and aquatic species.

11 3. Endangered Species: Any species listed as endangered under state or federal law.

Section 4: Prohibition of Balloon Releases

1. Effective immediately upon enactment, it shall be unlawful to:

a. Intentionally release any balloon into the atmosphere, whether for ceremonial, celebratory, or promotional purposes.

Section 5: Penalties

1. Any individual or entity found in violation of this Act shall be subject to a fine of \$50 for the first offense, \$150 for the second offense and \$250 thereafter per offense.

2. Each intentional balloon release shall constitute a separate offense.

Section 6: Public Education and Awareness

1. The Massachusetts Division of Fisheries and Wildlife shall develop and implement a public education campaign to inform residents about:

a. The environmental harm caused by balloon releases.

b. Sustainable celebratory alternatives to balloon releases.

2. The campaign shall include informational materials and resources accessible through the Division's website and local community organizations.

Section 7: Severability If any provision of this Act or its application is held to be invalid, that invalidity shall not affect other provisions or applications of the Act which can be given effect without the invalid provision or application, and to this end, the provisions of this Act are severable.

31 Section 8: Effective Date This Act shall take effect 90 days after its passage.

32 Legislative Declaration The Commonwealth recognizes that balloon releases represent a
33 significant environmental hazard, inflicting unnecessary harm on wildlife and polluting natural
34 habitats. By banning this practice, Massachusetts reaffirms its commitment to the protection of
35 the environment and the preservation of wildlife.